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California wants to see Twitter's content moderation policy. Elon Musk sued to stop it.

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Author: Andrew Sheeler, The Sacramento Bee | Section: capitol_alert | 955 Words
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Good morning and welcome to the A.M. Alert!

ELON MUSK SUES CALIFORNIA OVER CONTENT MODERATION LAW

Even as X (the increasingly toxic social media platform formerly known as Twitter) is hemorrhaging users, billionaire owner Elon Musk is suing California to block a law that would require the company to hand over its content moderation policy to the state.

Attorneys for Musk, who has allowed Nazis and white supremacists to flourish on his site, who has promoted antisemitic hashtag campaigns and allowed misinformation to proliferate, argue in the complaint that AB 587 — which passed in 2022 with overwhelmingly bipartisan support — violates the First Amendment. They contend that it compels the company to engage in speech against its will, interferes with the platform's editorial judgment, and "has both the purpose and likely effect of pressuring companies such as X Corp. to remove, demonetize or deprioritize constitutionally-protected speech that the state deems undesirable or harmful."

A spokesperson for the California Attorney General's Office, which is tasked with defending the law, said Friday that it had not yet been served with the complaint, but that when it is received "we will review it and respond in court."

AB 587's author, Assemblyman Jesse Gabriel, D-Woodland Hills, said in a statement that the bill is "a pure transparency measure" that forces tech companies to be upfront with how, or if, they are moderating their content.

"If Twitter has nothing to hide, then they should have no objection to this bill," Gabriel said.

Adam Kovacevich, a former Google executive and founder of the center-left, tech industry-funded Chamber of Progress, called the bill a bad idea that would be a boon to "scammers and conspiracists."

"Even if you don't like anything about Elon Musk's leadership of X, it's clear that requiring tech platforms to publish a detailed blueprint of how to work around content moderators will have negative consequences for users online," he said. "Letting platforms set their own editorial standards also leaves consumers with more choices about what kind of platforms they spend time on."

VOTING EXPERTS URGE ASSEMBLY TO PASS BILL BLOCKING ELECTION HAND COUNTS

The group Verified Voting is calling on Assembly lawmakers to pass a bill to block county governments from throwing out voting machines in favor of hand counts on election night, as the Shasta County Board of Supervisors did earlier this year.

AB 969 prohibits election officials from performing a manual count in a semifinal official canvas. The bill is currently in the Assembly, where it awaits a vote.

In a letter to legislative leaders on both sides, Verified Voting's Mark Lindeman wrote that the push for hand counts isn't in the interest of accuracy, but is an expensive solution to "an invented problem: the myth of rampant error and fraud in machine counts."

That claim has been spread, with no supporting evidence, by some conservatives in the aftermath of the 2020 presidential election.

PREP BILL A POISON PILL?

San Francisco Democratic Sen. Scott Wiener's office on Friday announced that the lawmaker is pulling SB 339 from consideration, in response to the Assembly Appropriations Committee inserting a "poison pill" amendment into the bill.

SB 339 was intended to improve access to PrEP and PEP, a pair of powerful HIV-prevention medications, by making them available over the counter.

So what's this poison pill?

The amendment would have allowed insurance companies to impose prior authorization for people trying to access PrEP and PEP, essentially forcing people to get insurance company permission before the drugs would be covered.

Wiener's office said that over the legislative recess, the senator will determine if there is a way to delete "these harmful amendments," and if not the bill will likely be abandoned.

"It's heartbreaking to see a straightforward, critically important HIV prevention bill stall this way," Wiener said in a statement "Thousands of Californians contract HIV each year, and we need common sense measures like SB 339 to improve access to PrEP."

QUOTE OF THE DAY

"The policy that began this wildfire, originating in Chino Valley, has been halted by the San Bernardino Superior Court after California Attorney General Rob Bonta filed suit arguing that it infringes on several state protections safeguarding the civil and constitutional rights of students. It is our hope this action gives pause to those who would seek to enforce similar forced outing policies."

- Equality California Executive Director Tony Hoang, in a statement responding to school boards in Rocklin and Orange voting to enact policies that out transgender students to their parents.

Best of The Bee:

Kaiser Permanente agreed to a $49 million settlement this month after state and local law enforcement found the health care giant disposed of confidential patient information, hazardous waste and medical waste including blood and body parts in regular trash streams, via Ariane Lange.Sen. Lena Gonzalez, D-Long Beach, said it's time that California increase the amount of mandated sick time, and she has introduced Senate Bill 616 to get it done. Initially, the measure would have mandated at least seven days of sick pay, but Gonzalez amended the bill last week to say at least five days, via Cathie Anderson.After some contentious debate, a California bill that would prohibit school boards from banning books, instructional materials or curricula that are deemed inclusive and diverse cleared its final major legislative hurdle Thursday, when the State Senate passed it, 30-9, via Andrew Sheeler and Lindsey Holden.California lawmakers will send a state excise tax on guns and ammunition to Gov. Gavin Newsom after years of failed attempts by Democratic legislators, via Lindsey Holden.After nearly four hours of often impassioned testimony, the Rocklin Unified School District Board of Trustees voted 4-1 early Thursday morning to require teachers and staff to alert a student's parents if they request to use different pronouns, go by a different name, or otherwise indicate that they are reconsidering their gender identity, via Jenavieve Hatch.

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